

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

SABRINA COBURN,

Petitioner

VS.

JAMES ROBERT COBURN,

Respondent

) Case Number: FDI-24-799774

) Hearing Date: June 11, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER SPOUSAL OR PARTNER SUPPORT, DISBURSEMENT OF COMMUNITY
FUNDS / APPOINTMENT OF 730 EXPERT

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the
Court makes the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner Sabrina Coburn and Respondent James Robert Coburn. They share one
minor child: Mayah Luna Coburn (DOB: 2/15/14). There are two related cases: case no. FDV-23-
816961 and FCS-23-356526.
- 2) On 5/23/24, Petitioner filed a Petition for Dissolution indicating the date of marriage is 4/10/04
and date of separation is 5/23/23 for a marriage of 19 years and 5 months.
- 3) On 9/12/24, the Court set temporary spousal support to \$0 because Respondent was laid off from
Uber on 3/1/24 and ordered Father to use his best efforts to secure a position of paid employment
commensurate with his earning capacity. See Findings and Order After Hearing (FOAH) file
dated 4/2/26.
- 4) On 2/3/26, Petitioner filed a Request for Order seeking temporary spousal support, advancement
of community funds, and appointment of an Evidence Code 730 expert. Petitioner alleges

1 financial abuse and extra-marital activity, and Petitioner asserts that she had no access to financial
2 records during marriage. Petitioner requests:

- 3 a. Guideline temporary spousal support based on Petitioner earning \$1,022 a month and
4 Respondent's income, which is to be determined (though Petitioner asserts According to
5 Respondents 2024 W-2 Respondent earned \$228,390.97 in 2024 at Uber Technologies);
 - 6 b. Immediate disbursement of \$400,000 from the Morgan Stanley at Work-Uber
7 Technologies account ending in X9453 as her sole and separate funds (as there was a
8 balance of \$1,040,740.52 in the account as of 9/20/24, which Petitioner believes are
9 community funds; and
 - 10 c. Appointment of a 730 expert. Petitioner requests the Court appoint Kery Kamita or James
11 Butera as a forensic accountant pursuant to Evidence Code section 730, with Respondent
12 100% responsible for the costs and the parties ordered to cooperate and provide all
13 requested documentation. Petitioner requests the forensic accountant perform:
 - 14 i. A pre-separation accounting;
 - 15 ii. A post-separation accounting;
 - 16 iii. A marital standard of living analysis; and
 - 17 iv. A division of community assets analysis.
- 18 5) On 2/3/26, Petitioner filed a Memorandum of Points and Authorities.
- 19 6) On 2/3/26, Petitioner filed an Income and Expense Declaration indicating she earns \$1,064 in
20 average monthly income and pays \$6,828 in average monthly expenses.
- 21 7) On 4/2/26, Petitioner filed Motion in Limine to Exclude Exhibits and Portions of the Responsive
22 Declaration to Request for Order.
- 23 8) On 4/2/26, Petitioner filed a Reply Declaration attached to which is a proposed XSpouse
24 Calculation calculating spousal support at \$3,294 monthly. The inputs include Petitioner's
25 income at \$1,022 and Respondent's income at \$18,358 monthly.
- 26 9) On 4/10/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
27 Order. Respondent argues that Petitioner is not following child custody and visitation agreements
28 so spousal support should not be ordered at this time. Respondent objects to disbursement of
29 community funds. Respondent requests child custody and visitation related orders.

10) On 4/10/26, Respondent filed an Income and Expense Declaration indicating he earns \$18,358 in average monthly income, pays \$2,408 in monthly health insurance premiums, has \$8,460 in cash assets, has \$933,089 in easily saleable funds, and pays \$4,323 in average monthly expenses (\$2,300 of which are paid by others).

11) On 4/14/26, the Court continued the matter to 5/12/26 on the Court's own motion.

12) At the prior 5/12/25 hearing, both parties appeared and agreed to Petitioner receiving an advancement of \$20,000 of Petitioner's share of community funds within one week of 5/12/26. Respondent was ordered to provide documentation of the transfer to Petitioner's counsel after it was completed. The Court continued the matter to 6/11/26.

13) On 6/3/26, Petitioner filed an update declaration asserting she did not receive any disbursement of funds from Respondent.

B. Findings and Order

1) As a preliminary matter, Petitioner's Motion in Limine is GRANTED.

2) Respondent's request regarding child custody and visitation (set forth in his 4/10/26 Responsive Declaration) is beyond the scope of the hearing set for 6/11/26, per Family Code section 213. Respondent's request is therefore DENIED without prejudice. Respondent may file a separate Request for Order to seek relief regarding this unrelated issue. (California Rules of Court, rule 5.92(g)(2).)

3) Petitioner's request for temporary guideline spousal support is GRANTED effective 2/3/26 (i.e., the date on which Petitioner filed the instant Request for Order).

4) In accordance with the XSpouse report attached hereto and incorporated herein, Respondent shall pay to Petitioner \$2,435 per month in guideline temporary spousal support. Respondent shall pay this amount to Petitioner no later than the 1st of each month.

5) The XSpouse is based on the following findings:

a. Per Petitioner's Income and Expense Declaration filed 2/3/26, Petitioner earns \$1,064 in average monthly income.

b. Per Respondent's Income and Expense Declaration filed 4/10/26, Respondent earns \$18,358 in average monthly income and pays \$2,408 in monthly health insurance premiums.

- 1 6) Respondent owes Petitioner \$11,833.75 in spousal support arrears for the period of 2/3/26 –
2 6/30/26 (\$2,093.75 for February + \$9,740 (\$2,435 x 4) for March – June). Respondent shall pay
3 this balance in full by 6/18/26.
- 4 7) Respondent is admonished for his failure to follow the Court's 5/12/26 order advancing Petitioner
5 \$20,000 of her share of community funds.
- 6 8) Petitioner's request for immediate disbursement of funds is GRANTED in amount of \$100,000
7 total i.e., \$20,000 as ordered on 5/12/26 + an additional \$80,000) as an advancement of her
8 community property interest, which is subject to reallocation pending trial. Respondent shall pay
9 this balance in full by 7/11/26.
- 10 9) Petitioner's request for appointment of a forensic account is GRANTED for the purpose of
11 performing:
- 12 a. A pre-separation accounting;
13 b. A post-separation accounting;
14 c. A marital standard of living analysis; and
15 d. A division of community assets analysis.
- 16 10) The forensic accountant shall be the Court's Evidence Code section 730 expert. By 6/10/26,
17 Petitioner shall provide two names of proposed forensic accountants to Respondent including,
18 their hourly rate, curriculum vitae (CV), and availability. Respondent shall be copied on all
19 correspondence with potential forensic accountants. Respondent shall then select one of the two
20 options proposed by Petitioner by 6/25/26.
- 21 11) Respondent shall be responsible for all fees and costs incurred for the forensic accountant subject
22 to reallocation.
- 23 12) Counsel for Petitioner shall prepare the Findings and Order After Hearing.
- 24 13) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
25 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
26 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
27 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
28 proposed order after hearing directly to the court. Failure to submit the order after hearing within
29

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

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2026**Fixed Shares**

	Father	Mother
Number of children	0	1
Percent time with NCP	8.90%	0.00%
Filing status	SINGLE HH/MLA	
Number of exemptions	1	2
Wages and salary	18358	1064
Self employed income	0	0
Other taxable income	0	0
TANF CS received	0	0
Other nontaxable income	0	0
New spouse income	0	0
Employee 401-k contribution	0	0
Adjustments to income	0	0
SS paid prev marriage	0	0
CS paid prev marriage	0	0
Health insurance	2408	0
Other medical expenses	0	0
Property tax expenses	0	0
Ded interest expense	0	0
Contribution deduction	0	0
Misc tax deductions	0	0
Qualified business income deduction	0	0
Required union dues	0	0
Mandatory retirement	0	0
Hardship deduction	0	0
Other GDL deductions	0	0
Child care expenses	0	0

Xspouse 2026-1-CA**Monthly Figures****2026****GUIDELINE****Nets (adjusted)**

Father	10010
Mother	1510
Total	11520
Addons	0
Guideln CS	0
S.Clara SS	2435
Total	2435

Support**Settings changed****Proposed****Tactic 9**

CS	0
SS	2435
Total	2435
Saving	0
Releases	0

Monthly Figures**Cash Flow****Guideline Proposed**

Combined net spendable	11520	11520
Percent change	0%	0%
Father		
Payment cost/benefit	-2435	-2435
Net spendable income	7575	7575
Change from guideline	0	0
% of combined spendable	66%	66%
% of saving over guideline	0%	0%
Total taxes	5940	5940
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	11684	11684
Mother		
Payment cost/benefit	2435	2435
Net spendable income	3945	3945
Change from guideline	0	0
% of combined spendable	34%	34%
% of saving over guideline	0%	0%
Total taxes	-446	-446
Dep. exemption value	0	0
# withholding allowances	0	0
Net wage paycheck	969	969

Father pays Guideline SS, Proposed SS

FC 4055 checking: **ON****Per Child Information**

	DOB	Timeshare	cce(F)	cce(M)	Addons Payor	Basic CS Payor	Pres CS Payor
All children		9 - 91	0	0	0 Father	0 Father	0 Father
	0000-00-00	8 - 92	0	0	0 Father	0 Father	0 Father